

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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SAM ALLEN,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, DETECTIVE EDWARD
FRENCH, Shield No. 367, POLICE OFFICER PETAR
SIMONOVIC, Shield No. 4299, UNDERCOVER POLICE
OFFICER, Shield No. 348, SERGEANT PETER
SCHULZ, and POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 7, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE EDWARD FRENCH, Shield No. 367, Narcotics Borough Bronx, One
Police Plaza, New York, NY 10038

POLICE OFFICER PETAR SIMONOVIC, Shield No. 4299, Narcotics Borough Bronx,
One Police Plaza, New York, NY 10038

UNDERCOVER POLICE OFFICER, Shield No. 348, Narcotics Borough Bronx, One
Police Plaza, New York, NY 10038

SERGEANT PETER SCHULZ, Narcotics Borough Bronx, One Police Plaza, New York,
NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
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SAM ALLEN,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE EDWARD
FRENCH, Shield No. 367, POLICE OFFICER PETAR
SIMONOVIC, Shield No. 4299, UNDERCOVER POLICE
OFFICER, Shield No. 348, SERGEANT PETER
SCHULZ, and POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff SAM ALLEN, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 16, 2016, at approximately 8:30 a.m., plaintiff Sam Allen, while lawfully present in the vicinity of White Plains Road and East Tremont Avenue, Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was maliciously prosecuted and denied the right to due process and a fair trial until June 6, 2017, when all criminal charges brought against plaintiff were dismissed and sealed in their entirety. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff SAM ALLEN is a resident of the state of New York.

3. DETECTIVE EDWARD FRENCH, Shield No. 367, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE EDWARD FRENCH, Shield No. 367, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx Squad.

5. DETECTIVE EDWARD FRENCH, Shield No. 367, is being sued in his individual and official capacity.

6. POLICE OFFICER PETAR SIMONOVIC, Shield No. 4299, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER PETAR SIMONOVIC, Shield No. 4299, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx Squad.

8. POLICE OFFICER PETAR SIMONOVIC, Shield No. 4299, is being sued in her individual and official capacity.

9. UNDERCOVER POLICE OFFICER, Shield No. 348, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. UNDERCOVER POLICE OFFICER, Shield No. 348, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx Squad.

11. UNDERCOVER POLICE OFFICER, Shield No. 348, is being sued in his individual and official capacity

12. SERGEANT PETER SCHULZ is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT PETER SCHULZ is and was at all times relevant herein, assigned to the Narcotics Borough Bronx Squad.

14. SERGEANT PETER SCHULZ is being sued in his individual and official capacity

15. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.

They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

20. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on June 20, 2017.

21. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On June 16, 2016, at approximately 8:30 a.m., plaintiff was lawfully present in the vicinity of White Plains Road and East Tremont Avenue, Bronx, New York, when the defendant police officers unlawfully stopped, questioned, and frisked plaintiff without reasonable suspicion, probable cause, or any legal justification.

25. At no time relevant herein did plaintiff commit a crime or violate the law, nor did the defendant police officers have any objective basis to accuse plaintiff of committing a crime or violating the law in any way.

26. The officers did not recover any illegal drugs, weapons or contraband from plaintiff or from his possession, custody, or control.

27. Nevertheless, plaintiff was unlawfully handcuffed and arrested by the defendant police officers without legal justification or probable cause.

28. Plaintiff was transported by the defendant police officers to the 49th Precinct against his will, where he was photographed, fingerprinted, searched, and then placed in a holding cell by the defendants.

29. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

30. After many hours in unlawful custody, plaintiff was transported to Bronx County Central Booking and placed in a holding cell.

31. The defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information which allegedly led them to believe that plaintiff committed a crime.

32. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

33. On June 17, 2016 at approximately 8:00 p.m., after approximately 36 hours in custody, plaintiff was arraigned in Bronx County Criminal Court and charged with crimes he did not commit and that the defendant officers had no basis to accuse him of committing.

34. The officers unlawfully charged plaintiff with Criminal Sale of a Controlled Substance in the Third Degree, Criminal Possession of a Controlled Substance in the Third Degree, Criminal Possession of a Controlled Substance in the Fifth Degree, and Criminal Possession of a Controlled Substance in the in the Seventh Degree, without probable cause or legal justification.

35. The judge set bail, which plaintiff posted, and plaintiff was released from custody on July 17, 2016 at approximately 8:00 p.m.

36. Thereafter, plaintiff was forced to appear in Court on approximately 5 occasions before all charges were dismissed and sealed on June 6, 2017.

37. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest and imprisonment, malicious prosecution, and denial of due process and the right to a fair trial against plaintiff.

38. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, and denial of a right to fair trial by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned plaintiff, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

57. Defendants lacked probable cause to search plaintiff.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Sam Allen. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

64. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Denial of Right to Fair Trial/Due Process**

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein

70. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

71. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

72. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

73. In withholding/creating false evidence against plaintiff Sam Allen, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

74. As a result of the foregoing, plaintiff Sam Allen, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

83. Defendants failed to intervene to prevent the unlawful conduct described herein.

84. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

85. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

89. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

Dated: New York, New York
March 7, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
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POLICE OFFICER PETAR SIMONOVIC, Shield No. 4299, Narcotics Borough Bronx,
One Police Plaza, New York, NY 10038
UNDERCOVER POLICE OFFICER, Shield No. 348, Narcotics Borough Bronx, One
Police Plaza, New York, NY 10038
SERGEANT PETER SCHULZ, Narcotics Borough Bronx, One Police Plaza, New York,
NY 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 7, 2018

/s/
STUART E. JACOBS